

Scope of Work

1.0 General Intent

1.1 The contractor must provide personnel, equipment, tools, materials, supervision, and other items and services necessary to necessary to Replace and Install (4) mixing valves in the domestic hot water system located in Bldg. 101 at VAPAHCS Palo Alto 3801 Miranda Ave, Palo Alto, CA 94304.

1.2 The contractor must perform to the standards in this contract. This project shall take no longer than **60 calendar days** from the date of award. The material order lead time has been incorporated into the 60-calendar day period of performance.

1.3 This project shall be coordinated with the appointed COR to insure minimal impact to residents' day-to-day activities and minimal noise. Scheduling of work shall be at the convenience of the VAPAHCS.

2.0 General Information and Requirements

2.1 The objective of this project is to Replace and Install (4) mixing valves in the domestic hot water system located at VAPAHCS Palo Alto 3801 Miranda Ave, Palo Alto, CA 94304.

2.2 The contractor shall provide operation and maintenance instructions, and manufacturer documentation at the completion of the project. Manufacturer documentation and maintenance schedule to be provided in close out documents.

2.3 The contractor shall provide tools, labor, supervision, equipment, and personal protective equipment necessary to complete this project as deemed by industry standards, this SOW, all related specifications, applicable code requirements, and site policy.

2.4 The contractor shall provide daily cleanup and securing of work site, including securing tools and equipment. Disposal of all waste and debris is at the contractor's own expense.

2.5 The contractor shall provide quality control of all work conducted and the individual appointed shall be competent and educated/experienced in the field of work this scope encompasses.

2.6 All work shall be coordinated with the COR assigned to this project and only commence once approved.

2.7 Badges: Contractor will obtain required ID badges for all employees used on project at start of each workday; Report the COR for escort to the station police service for sign in and badge issuance. No PIV card will be required.

2.8 Security: The contractor and their personnel shall be subject to the same Federal laws, regulations, standards, and VA policies as VA personnel regarding information and information system security.

2.9 Schedule: Normal work hours will be 8:00am – 4:30 pm Monday-Friday excluding Government holidays unless otherwise approved by the COR. Any request for utility shutdowns must be requested in writing at a minimum of **15** days prior to the requested day of shutdown.

2.10 Codes and Standards: The Contractor shall follow applicable codes and standards to this type of work including but not limited to Health Care System Memorandums (HCSM), OSHA Guidelines, Lock-out-Tag-out, Rules of Station, NFPA, and etcetera. If any code/standard is found to be contradictory; the authority having jurisdiction (COR) shall make the final determination and work shall proceed at no additional cost to the Government.

3.0 Specific Tasks

3.1 The contractor shall provide all supervision, administrative and technical support, labor, subcontractors, tools, transportation, materials, supplies and equipment. The contractor shall plan, schedule, and ensure effective completion of replacements.

3.2 The contractor will conduct the following:

1. The contractor will lockout/tag out heating hot water system and drain line.
2. The contractors will remove (4) old recirculation valves and replace them with Armstrong DRV80 digital recirculation valves or equivalent.
3. Once installed, the contractor will remove locks and tags and test and operate recirculating valves for proper operation.
4. The contractor will remove and dispose of all replaced parts and old piping.

4.0 Warranty Guarantee:

1. Contractor will make sure all work has been done according to the manufacturer's recommendation for mixing valves. All work will be warranted by the contracted installer before testing and after for Three hundred and sixty-five (365) days. Warranty begins after (4) mixing valve installations are to be completed and tested for operation and leaks of the newly installed mixing valves. If mixing valves do not function or leaks, contractor will replace the mixing valve(s) with a new one.

5.0 Qualifications.

1. Contractor must have a C-36 Plumbing Contractor License to conduct repairs.

6.0 Compliance

1. 1/The contractor shall be fully responsible for compliance with all VA, local, state, and federal environmental/occupational safety laws, rules, and regulations. The contractor shall follow life and safety codes and take necessary actions to avoid conditions that may be hazardous to the health and safety of hospital personnel and patients. The contractor is responsible for meeting all applicable OSHA and VA guidelines for safe working processes; example: lock-out/tag-out program or safe handling of hazardous materials

6.1 Contractor Employees.

1. Contractor personnel shall present a neat appearance and be easily recognized as contractor employees. Example: wearing distinctive clothing such as uniform, badges, patches, etc.

6.2 Escort and Veteran's Hospital Security Police Check-In

1. All contractor personnel working onsite at the VA facility shall check in and out with VA police dispatch located in the entrance of the Emergency Department. Access to work areas, and performance monitoring, will be provided by VA Engineering personnel. After hours response will be monitored by VA Boiler Plant operators, (650) 493-5000 ext.66572. In all cases, VA Palo Alto Boiler Plant operator shall be notified of any changes which may affect the response time of vital equipment.

7.0 Contractor Personnel

1. The contractor shall assign a point of contact (POC) for the purpose of ensuring compliance with the provisions of the contract. The contractor's POC shall be available on site and have the ability to address performance issues. All employees should be able to read and speak English.
2. Contractor personnel working under this contract shall not be considered VA employees for any purpose and shall be considered employees of the contractor. All contractor personnel assigned to the performance of this contract shall wear a contractor-provided uniform or I. that clearly identifies the individual as a contractor. All contractor personnel are required to wear identification (I.. badges during the entire time they are on the VAPAHCS grounds. ID badges must have picture identification, name of the individual, and the represented company depicted on it.

3. Contractor personnel shall not wear sandals, flip-flop style footwear, or open-toe shoes; and shall follow VA dress guidelines. A copy of this will be provided upon request.
4. The contractor shall ensure that the staff assigned shall be cognizant of the VA's sexual harassment and drug-free workplace policies. The contractor may obtain a copy of this information from the COR.

7.1 Contractor Contact Information

1. Offerors shall provide in the space provided below the name, address and telephone number of the office where calls are to be placed:

Name:

Address:

Telephone:

8.0 Smoking and Parking Policy

1. It is the responsibility of contractor personnel to park only in designated parking areas. Parking information is available from the VA police. The VA will not validate or make reimbursement for parking violations of the contractor's personnel under any circumstances.
2. Smoking is not permitted within or around the VAPAHCS facilities.

9.0 Contractor Submittals/Insurance Requirements

1. The contractor shall be required to comply with Federal and California State workers compensation and liability insurance (reference FAR clause 52.228-5-Insurance and Subpart 28.307-2-Liability).
2. The Government shall be held harmless against any or all loss, cost, damage, claim expense or liability whatsoever, because of accident or injury to persons or property of others occurring in the performance of this contract.
3. The Contractor shall be responsible for all damages to property, which may be done by him/her or any employee engaged in the performance of this contract.
4. The parties agree that the Contractor's personnel working under a contract shall not be considered VA employees for any purpose and shall be

considered employees of the contractor. The contractor shall be responsible for providing:

- a. Workers Compensation,
- b. Professional liability insurance,
- c. Health examinations,
- d. Income tax withholding, and
- e. Social Security payments.

10.0 Ordering Activity

1. Contractor shall not accept any instructions issued by any person other than the CO or COR acting within the limits of his/her authority.

11.0 Changes To Contract

1. Only those services specified herein are authorized. Before performing any service of a non-contractual nature, Contractor shall submit a written change request to the Contracting Officer (CO) of the reason(s) for the additional work and/or service. Only the CO can approve post award modifications to the contract on behalf of the Government.

12.0 Complaints

1. Contractor shall promptly and courteously respond to complaints within 3 working days. Including complaints brought to Contractor's attention by the CO. Contractor shall maintain a written record of all complaints, both written and oral showing the identity of the individual, the nature of the complaint, and Contractor's response. Contractor shall permit the Government to inspect such records upon reasonable notice.

13.0 Invoice Requirements

1. No advance payments will be authorized
2. The Government shall pay the Contractor, upon the submission of a properly prepared invoice for prices stipulated in this contract for services and supplies delivered and accepted.
3. Payment of invoices may be delayed if appropriate field service reports are not completed and submitted as specified herein
4. The invoice shall be itemized to include the following minimum information:

Invoice Number and Date.

Contract Number.

Purchase Order/Obligation Number (to be assigned upon task order award).
Date of service.

14.0 Post-Award Performance Conference

1. The CO may schedule a post-award performance conference with Contractor, if deemed necessary, for contract orientation purposes

15.0 Engineering Support by VA or AE Firm

1. Only VA staff Support.

16.0 Storage or Laydown Area

1. There will be a storage or laydown area provided for the contractor. Location will be coordinated with COR after award.

17.0 VA RFI and VA Submittal Response Times

1. RFI and Submittal Response Times will be 5 days after submittals.

18.0 Security Requirements

1. Contractors, contractor personnel, subcontractors, and subcontractor personnel shall be subject to the same Federal laws, regulations, standards, and VA Directives and Handbooks as VA and VA personnel regarding information and information system security.
2. A prohibition on unauthorized disclosure: "Information made available to the contractor or subcontractor by VA for the performance or administration of this contract or information developed by the contractor in performance or administration of the contract shall be used only for those purposes and shall not be used in any other way without the prior written agreement of the VA." See VA Handbook 6500.6, Appendix C, paragraph 3.a.
3. A requirement for data breach notification: Upon discovery of any known or suspected security/privacy incidents, or any unauthorized disclosure of sensitive information, including that contained in system(s) to which the contractor/subcontractor has access, the contractor/subcontractor shall immediately and simultaneously notify the COR, the designated ISO, and Privacy Officer for the contract. The term 'security incident' means an event that has, or could have resulted in unauthorized access to, loss or damage to VA assets, or sensitive information, or an action that breaches VA security procedures. See VA Handbook 6500.6, Appendix C, paragraph 6.a.

4. A requirement to pay liquidated damages in the event of a data breach: "In the event of a data breach or privacy incident involving any SPI the contractor processes or maintains under this contract, the contractor shall be liable to VA for liquidated damages for a specified amount per affected individual to cover the cost of providing credit protection services to those individuals." See VA requirements and the total number of employees trained. See VA Handbook 6500.6, Appendix C, paragraph 9.
5. A requirement to sign VA's Rules of Behavior: "Before being granted access to VA information or information systems, all contractor employees and subcontractor employees requiring such access shall sign on an annual basis an acknowledgment that they have read, understand, and agree to abide by VA's Contractor Rules of Behavior which is attached to this contract." See VA Handbook 6500.6, Appendix C, paragraph 9, Appendix D. Note: If a medical device vendor anticipates that the services under the contract will be performed by 10 or more individuals, the Contractor Rules of Behavior may be signed by the vendor's designated representative. The contract must reflect by signing the Rules of Behavior on behalf of the vendor that the designated representative agrees to ensure that all such individuals review and understand the Contractor Rules of Behavior when accessing VA's information and information systems.
6. VAPAHCS shall have unlimited rights to use, dispose of, or disclose such data contained therein as it determines to be in the public interest. Any contractor rights in the data or deliverables must be identified as required by FAR 52.227-11 through FAR 52.227-20
7. Training. All contractor employees assigned to this contract who create, work with, or otherwise handle records are required to take VHA-provided records management training. The contractor is responsible for confirming training has been completed according to agency policies, including initial training and any annual or refresher training.
8. Flow down of requirements to Subcontractors:
 - A. The contractor shall incorporate the substance of this clause, its terms and requirements including this paragraph, in all subcontracts under this contract document, and require written subcontractor acknowledgment of same.
 - B. Violation by a subcontractor of any provision set forth in this clause will be attributed to the contractor.

19.0 Technical Exhibits

Specifications (see attached, listed below)

01 35 26 SAFETY REQUIREMENTS

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